

25VECV04856 25VECV04856

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-27

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Tentative Ruling

Khok v. Ramos, Case no. 25VECV05856

Hearing date August 27, 2026

Defendant

Interinsurance Exchange's Demurrer to Complaint

Plaintiff

Khok sues defendants Ramos, Interinsurance Exchange of the Automobile Club and others for injuries arising from a motor vehicle accident. All parties other than Interinsurance Exchange ("defendant") have been dismissed. Plaintiff sues for bad faith denial of her insurance claim. Defendant demurs; plaintiff opposes.

"The

function of a demurrer is to test the sufficiency of the complaint as a matter of law." *Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420. A complaint "is sufficient if it alleges ultimate rather than evidentiary facts." *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550, but plaintiff must allege essential facts "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. *Doheny Park Terrace Homeowners Ass'n., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.

Defendant

demurs to plaintiff's claim for insurance – bad faith. "To fulfill its implied

obligation, an insurer must give at least as much consideration to the interests of the insured as it gives to its own interests. When the insurer unreasonably and in bad faith withholds payment of its insured's claim, it is subject to tort liability. And an insurer cannot reasonably and in good faith deny payments to its insured without fully investigating the grounds for its denial." *Frommoethelydo v. Fire Ins. Exchange* (1986) 42 Cal.3d 208, 214-215.

Defendant

argues plaintiff failed to allege the nature of the policy benefits allegedly withheld, under what policy benefits were allegedly withheld and under what type of policy benefits were allegedly withheld. Defendant argues plaintiff failed to allege with particularity whether the cause of action is for first-party or third-party bad faith, the latter of which is no longer a recognized cause of action. *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287.

The

complaint alleges defendant "denied plaintiff's claim in bad faith by... (a) failing or refusing to perform a fair, objective and thorough investigation... (b) asserting coverage defenses that were legally and/or factually invalid... (c) placing unduly restrictive interpretations on the policy terms..." Compl., p. 6. The complaint fails to state under what policy or policies plaintiff sought to recover, whether an investigation occurred or whether plaintiff disputes the validity of an investigation, or what terms defendant allegedly misinterpreted. This is insufficient and vague.

While

California has liberal pleading standards, a plaintiff must still allege necessary baseline factual allegations. Plaintiff must clearly allege the policy terms allegedly violated, how those terms were allegedly violated and under what policy those terms were enforceable. SUSTAINED with 15 days leave to amend.